

TERMS & CONDITIONS

To continue and use our app, you agree to following terms and conditions of use, which, along with our privacy policy, govern Dropac Logistics Private Limited relationship with you concerning this app and the Services described below. In case of any discrepancies between the terms and conditions outlined here and those found in any other agreement executed by the parties, the terms and conditions stated here shall take precedence.

DEFINITIONS

"We," "us," "our," "Dropac," and "Company" denote Dropac Logistics Private Limited, along with its employees and service providers tasked with carrying or managing the consignment and any related services performed on its behalf. "You," "your," and "consignor" signify the sender, consignor, or consignee of the consignment, the individual possessing this Consignment Note, the receiver, the owner of the contents of the consignment, or any other party with a legal interest in those contents, as applicable. Services encompasses the offerings of Dropac that facilitate the following: The transportation of goods by customers for either direct point-to-point service or usage-based service, covering both urban and intercity routes across India. The engagement of labor by customers for the loading and unloading of consignments. Any supplementary services that Dropac may periodically introduce. "Carriage" pertains to the complete range of activities and services performed by us in relation to the Consignment. "Consignment" refers to any item, including packages, parcels, bags, or freight, that is entrusted to us and accepted for transport under our Consignment Note. "Dangerous Goods" denotes items categorized as hazardous under ICAO T.I., IATA DGR, IMDG-Code, ADR, or relevant national transportation regulations. "Delivery" indicates the act of handing over the consignment to the consignee or providing notice of its arrival. "Prohibited Items" includes any products or materials that cannot be transported as mandated by applicable laws. Applicable Law encompasses all relevant laws, statutes, regulations, guidelines, directives, policies, orders, and other governmental restrictions that hold legal authority in the Republic of India or any other pertinent jurisdiction.

USER

"User" refers to any person or legal entity that is authorized to operate within India or any other jurisdiction and is entitled to access and utilize the services offered by Dropac. It is important to note that our services are exclusively available to individuals and organizations

capable of entering into legally binding agreements as per applicable laws. Dropac strongly encourages all users to adhere to applicable laws while using the app. We accept no liability for any outcomes resulting from your activities while engaging with the app. Furthermore, Dropac reserves the right to deny service to any individual or entity at any time, at its discretion

AGREEMENT

This agreement is relevant to all users, including both visitors and those who are registered, accessing the app for any reason. It also includes any legal entity that you may represent, either through actual or perceived authority. Users are permitted to use this app exclusively for personal or internal purposes. This agreement encompasses all services offered by Dropac, along with any supplementary terms and conditions that may apply to particular services accessed by users. In the event of any discrepancies or contradictions between the provisions outlined here and those associated with a specific service, the specific provisions related to that service will take precedence.

MODIFICATION OF AGREEMENT

Dropac retains the authority to alter, revise, modify, or enhance this agreement at any time, with or without prior notice to users. The revised terms and conditions will become effective immediately upon being posted. Continuing to use the Services indicates your acceptance of the new terms and your agreement to the revised provisions. Additionally, users will be subject to any changes made to any policies or agreements mentioned in these Terms of Service.

OWNERSHIP OF INTELLECTUAL PROPERTY

Dropac holds exclusive ownership or valid licenses for all rights related to the app and its associated information. This content encompasses the design, layout, text, images, graphics, audio, video, and more. It contains proprietary information and intellectual property that is safeguarded under copyright and various international laws. All rights, and intellectual property associated with the App and its content will continue to belong to Dropac, its subsidiaries, or its licensors, as appropriate.

Any rights not expressly granted by this agreement or by Dropac are considered reserved. The information presented on this app is meant exclusively for general informational purposes and is intended for personal use by the reader, who assumes full liability for its application. Dropac does not guarantee the accuracy or reliability of any information or advertisements found on, distributed through, or linked to from any of the Services provided on this website. We disclaim any responsibility for errors or omissions and for any results that may arise from using this information. All content on this website is offered "AS IS," without any assurance of completeness, accuracy, timeliness, or results derived from its use, and without any kind of warranty, whether express or implied. Dropac reserves the right, without any obligation, to make improvements or corrections to any inaccuracies or omissions in any segment of the Service or the app. Users are encouraged to conduct their independent investigations and apply sound technical and business judgment. Under no circumstances will Dropac be held liable for any direct, indirect, incidental, punitive, or consequential damages related to the Service. Users of this website must acknowledge that reliance on any content is at their own discretion.

TRADEMARKS

All associated logos and icons are either registered trademarks or service marks of Dropac in multiple jurisdictions and are safeguarded by relevant copyright, trademark, and proprietary rights laws. Any unauthorized reproduction, alteration, usage, or distribution of these marks is strictly forbidden.

COPYRIGHT NOTICE

The entirety of the content featured on this app is owned by Dropac, with the exception of third-party content and hyperlinks to external websites accessible via our app/website.

Unauthorized systematic retrieval of Dropac's content to establish or compile a collection, database, or directory—whether through automated means or manual methods—without prior written consent from Dropac is not permitted.

Furthermore, utilizing the content for any purposes not explicitly allowed by this Agreement is prohibited and may lead to legal consequences. By accessing and utilizing Dropac's Services, you agree to refrain from using the website service in a manner that violates the intellectual property rights of Dropac or any third party. Dropac retains the right to suspend or terminate the account of any user(s) if any infringement on third-party rights occurs in connection with the use of Dropac's services, or if Dropac deems a user's actions detrimental to the interests of Dropac, its affiliates, or other users, at Dropac's sole discretion, with or without cause. You agree to indemnify Dropac for any losses or expenses resulting from any violation of the intellectual property rights held by Dropac, without limiting Dropac's right to take legal action against you. We recommend reviewing the terms and conditions and privacy policies of these third-party websites before engaging with them to fully understand their usage terms. Users acknowledge that Dropac is not responsible for these external sites and does not monitor their activities.

Consequently, Dropac is not liable for any issues related to third-party sites, including any content, products, or services they provide. Users should also refer to Dropac's Privacy Policy and adhere to it while interacting with Dropac regarding any personal information or data.

TERMINATION OF ACCESS

Dropac retains the right to terminate access to specific sections or features of the website/app at any time and for any reason, with or without prior notice. Additionally, Dropac reserves the right to restrict access for certain users to any or all of its Services without providing prior notice or justification, to safeguard the interests of Dropac and other website visitors. We may also modify, limit, or differentiate access to the website and its features for various users or introduce new features without any advance notice.

TERMS & CONDITIONS FOR USE OF SERVICES

The following terms govern the use of Dropac's vehicle hiring services by customers. Customers are required to pay the applicable fare, parking fees, night surcharges (if any), and any other charges mandated by law or introduced later. By using Dropac's services, the customer acknowledges that all risks associated with the use of the service lie with them,

and Dropac disclaims all warranties, whether explicit or implied. Customers also agree to refrain from engaging in the following activities while using the services:

Damaging or defacing the vehicle's interior or exterior.

Misusing or causing damage to any devices installed in the vehicle.

Requesting the driver to violate any traffic or government regulations. Drivers have the right to refuse such requests or even cancel the trip.

Pressuring the driver to overload the vehicle beyond its capacity.

Customers agree to indemnify Dropac against any claims, damages, or legal fees resulting from their use of the service, including any misuse. Dropac may collect location data from telecommunication providers to enhance service efficiency and better match customers with available vehicles. Dropac reserves the right to share customer information with government authorities or affiliated companies as per legal requirements or for business purposes. Additionally, Dropac can terminate any booking without explanation, and customers will be responsible for any associated expenses. Dropac's liability for any consignment damage or loss will be governed by the applicable Carriage by Road Act and related rules. In case of missing items, customers are still required to complete their payment obligations to Dropac. If payment is overdue, Dropac reserves the right to hold the consignment until full payment is received. Any complaints regarding the service or vehicles must be submitted in writing within 24 hours of the service. While Dropac disclaims responsibility for driver behavior, customers are encouraged to report any issues with drivers. Dropac may modify these terms at any time, and customers will be bound by such changes once they are published on Dropac's website. All customer calls to Dropac's call center may be recorded for training and quality assurance. By submitting inquiries through the app or website, customers consent to receiving communications, including marketing content, from Dropac via phone or email. These communications will not be considered unsolicited under applicable regulations, and Dropac's contact details are not subject to the "Do Not Call" lists as per regulatory guidelines. Dropac will use the email and/or phone number provided by the customer for communication and payment processing. Dropac disclaims any liability for inaccuracies in the customer's data. Customers can opt for Labour Services through Dropac by selecting the "Include Labour" option during the review stage on the app or website. The term "Labour Services" refers to assistance provided by the labourers, including the loading or unloading of goods from the designated points to the vehicle, or from the vehicle to the unloading location. "Labour" refers to the vehicle driver and any person accompanying the driver in the vehicle. By choosing the "Include Labour" option or utilizing the Labour Services, you agree to the following terms, which are supplementary to the terms for vehicle hire. You acknowledge that the Labour Services are limited to loading/unloading from ground floor to ground floor, with the maximum distance between the vehicle and the loading/unloading point. You agree to pay the additional

charges for the Labour Services as reflected on your invoice. You commit to being present during the loading/unloading process. In case of your absence, an authorized representative must be present to oversee the process. Dropac disclaims responsibility for any misconduct by the labourers during loading/unloading. However, any concerns should be reported to Dropac, which may address the issue at its discretion.

CONFIDENTIALITY

User(s) shall maintain the confidentiality of any information obtained through their agreement with Dropac. This includes any sensitive business information that, if disclosed, could negatively affect Dropac. User(s) are responsible for compensating Dropac for any reputational or business losses caused by breaching confidentiality.

DISCLAIMER

For security purposes, all vehicles associated with the Company are monitored through mobile technology. It is important to note that the Company does not own any of the vehicles, nor does it hire drivers or labour for loading or unloading consignments. These services, including vehicles, drivers, and labour, are provided by third-party vendors, and the Company assumes no responsibility or liability regarding the quality or actions of the vehicles, drivers, or labour. The Company reserves the right to use customer contact information for its marketing activities and may send regular SMS notifications to the mobile numbers provided by customers.

AGREEMENT TO TERMS AND CONDITIONS

Service Contract Terms

This contract pertains to the execution of services on your behalf or for any other party with an interest in the consignment or related services. This applies regardless of whether you have signed our consignment note. Our terms also extend to third parties we engage or subcontract for transportation, collection, delivery, or other related services, as well as to our employees, directors, and agents. Any alterations to these terms must be confirmed in writing by one of our authorized representatives. If you provide verbal or written instructions that contradict our terms and conditions, those instructions will not be enforceable.

YOUR RESPONSIBILITIES

You make the following assurances and guarantees to us:

You confirm that the consignment details, including but not limited to the weight and number of items, are accurately recorded on the consignment note, and that all required documentation for the transport, such as invoices and permits, are attached to it.

You ensure that the consignment does not contain any prohibited or restricted items as per applicable regulations and, if necessary, you will provide a complete and accurate Dangerous Goods declaration in compliance with the law. Neither you nor the recipient is restricted by law from engaging in business with us.

All information and documents related to the consignment that you provide are true and accurate. You acknowledge that if any false or fraudulent statements are made regarding the consignment or its contents, it could result in civil liability or criminal prosecution, with potential penalties including forfeiture and sale of the consignment. You agree to indemnify and protect us from any claims arising from incorrect information provided by you.

You authorize us to deliver the goods to the address specified on the consignment note. You declare that the consignment's weight is accurate and agree to provide any special equipment necessary for loading or unloading the goods onto or off our vehicles. You confirm that you have complied with all applicable legal requirements related to the consignment.

VALUABLES AND RISK

You understand and acknowledge that our services are not suitable for the transport of high-value items like cash, jewelry, precious stones, or other valuables. If such items are included in the consignment without our knowledge, any loss, theft, or damage will be solely at your risk. We shall not bear any responsibility or liability in such cases, and we reserve the right to claim indemnification for any harm to our reputation or goodwill caused by your actions that breach these terms.

Further, for consignments exceeding INR 20000 in value, you must insure the shipment through a licensed general insurance provider before handing it over for transportation. If the goods are not insured or incorrectly declared, you bear full responsibility for any loss or damage. We explicitly disclaim any liability in such circumstances.

INDEMNIFICATION

You agree to indemnify us from any legal liabilities, costs, damages, or expenses incurred due to your breach of these warranties and guarantees. This applies even if we accept a consignment that unknowingly violates these obligations.

Additionally, you certify that all statements and information you provide about the consignment are accurate. In cases where assistance is provided by us for customs clearance or other formalities, you accept that such help is provided at your risk. You will indemnify us against any claims or costs arising from inaccuracies in the information you provide, and agree to cover any related administrative fees.

SERVICE LIMITATIONS

You acknowledge that DROPAC services are provided at your risk, and DROPAC makes no warranties regarding the suitability, quality, or merchantability of the services provided. Furthermore, DROPAC cannot guarantee that the services will meet your specific needs, nor can it ensure uninterrupted, secure, or error-free service.

Additional charges may apply for remote locations, tolls, or other unexpected costs.

FORCE MAJEURE

DROPAC is not liable for any failure to perform its obligations due to circumstances beyond its control, including but not limited to:

Natural disasters such as earthquakes, storms, floods, or fires. Events such as war, strikes, pandemics, or civil unrest.

Transportation disruptions, mechanical failures, or network breakdowns. Criminal acts like theft, arson, or sabotage.

Defects in the goods being transported or acts of negligence by third parties. BREACH

In the event that you or a third party violate these terms and conditions, or if the consignment contains prohibited items, dangerous goods, or valuables without our knowledge, we reserve the right to disclaim responsibility, even if we accepted the consignment by mistake.

Any consignment containing dangerous goods must be declared in accordance with applicable legal requirements. Failure to comply may result in the consignment being refused or additional liabilities.

Hazardous Goods:

We do not transport, nor engage in services involving goods that we deem to be hazardous, which includes but is not limited to those classified under relevant laws, regulations, or technical guidelines that govern the handling or transportation of dangerous goods.

At our sole discretion, we may agree to transport certain hazardous goods, but only if you have been approved as a certified customer by us. Approval must be granted in writing before any consignment is accepted. Such goods must fully comply with the necessary regulations, and any consignment of dangerous goods will incur a surcharge, which will be billed upon acceptance of the consignment. Information on our procedures and requirements for obtaining approved customer status can be obtained from our nearest office.

You agree that no third party with an interest in the consignment will be allowed to bring any legal claim against us, even in cases of negligence or fault. Should a claim be initiated, you agree to indemnify us against any resulting consequences, including legal fees and other related costs.

The terms and conditions outlined here, along with our privacy policy, constitute the full agreement between you and DROPAC, superseding any prior agreements or understandings, whether oral or written, related to the subject matter.

Governing Law and Jurisdiction:

These terms will be governed by Indian law, and any disputes will be subject to the exclusive jurisdiction of the courts in Hyderabad.

Grievance Officer:

In compliance with the Consumer Protection (E-Commerce) Rules, 2020, any grievances can be directed to the following:

Legal Team, DROPAC

Email: info@dropac.in

Hours: Monday to Friday, 10 a.m. to 6 p.m.

Disclaimer:

The information provided on our app is intended for general information purposes only. While we strive to keep the information current and accurate, DROPAC makes no representations or warranties, express or implied, about the accuracy, reliability, or suitability of the information, products, or services provided. We are not liable for any damages, direct or indirect, resulting from the use of our website or app, including, but not limited to, loss of data or profits. Links to external websites are provided for convenience, but we do not control their content or availability, nor do we endorse their views. DROPAC is not responsible for any technical issues that may cause temporary unavailability of our services.